

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

-----X Index No.
ISAAC OKOLI, MILLYCENT ATUEGWU, VICTORIA OKOLI, Date Purchased:
GABRIEL OKOLI, SAMUEL OKOLI AND P.O. (AN
INFANT WHOSE PARENTS AND NATURAL GUARDIANS ARE
ISAAC OKOLI AND MILLYCENT ATUEGWU)

Plaintiff(s),
-against-

SUMMONS

Plaintiff Designates Kings
County as Place of
Trial

THE CITY OF NEW YORK, DERMOT F. SHEA(in his
individual and Official capacities) and JOSEPH E. KENNY(in his
individual and Official capacities)

Defendant(s).

The Basis of Venue is
Plaintiffs Residence

-----X
Plaintiff Reside at
650 Sapphire Ave,
Brooklyn, NY 11208

To The Above Named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
April 11, 2022


Rehan Nazrali Esq
Attorneys for Plaintiff(s)
299 Broadway, 17th Fl
New York, NY 10007
(646) 331-9378

Defendants' Addresses:

The City of New York
Corporation Counsel
100 Church Street
New York, N.Y. 10007

New York City Police Department
One Police Plaza
New York, N.Y. 10038

Dermot F. Shea
565 W End Ave, Apt 8B
New York, NY 10024

Joseph E. Kenny
146 Vernon Valley, Rd
East Northport, NY 11731

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ISAAC OKOLI, MILLYCENT ATUEGWU, VICTORIA OKOLI,
GABRIEL OKOLI, SAMUEL OKOLI AND P.O. (AN
INFANT WHOSE PARENTS AND NATURAL GUARDIANS ARE
ISAAC OKOLI AND MILLYCENT ATUEGWU),

Plaintiffs

Index#:

VERIFIED
COMPLAINT

AGAINST

THE CITY OF NEW YORK, DERMOT F. SHEA (in his
individual and Official capacities) and
JOSEPH E. KENNY(in his
individual and Official capacities)

Defendants

-----X
Plaintiffs, ISAAC OKOLI, MILLYCENT ATUEGWU, VICTORIA OKOLI, GABRIEL
OKOLI, SAMUEL OKOLI AND P.O. (AN INFANT WHOSE PARENTS AND NATURAL
GUARDIANS ARE ISAAC OKOLI AND MILLYCENT ATUEGWU), by their attorney, Rehan
Nazrali Esq., complaining of the defendants, respectfully shows to this Court and alleges, upon
information and belief, as follows:

PARTIES

1. At the time of the commencement of this action Plaintiffs ISAAC OKOLI (hereinafter ISAAC) was a resident of the County of Kings, in the City and State of New York.
2. At the time of the commencement of this action Plaintiff MILLYCENT ATUEGWE (hereinafter MILLYCENT) was a resident of the County of Kings, in the City and State of New York.
3. At the time of the commencement of this action Plaintiffs VICTORIA OKOLI (hereinafter VICTORIA) was a resident of the County of Kings, in the City and State of New York.

4. At the time of the commencement of this action Plaintiffs GABREIL OKOLI (hereinafter GABRIEL) was a resident of the County of Kings, in the City and State of New York.
5. At the time of the commencement of this action Plaintiff SAMUEL OKOLI (hereinafter SAMUEL) was a resident of the County of Kings, in the City and State of New York.
6. At the time of the commencement of this action Plaintiff P.O (an Infant whose parents and natural guardians are Isaac Okoli and Millycent Atuegwu) (hereinafter P.O) was a resident of the County of Kings, in the City and State of New York.
7. At all times relevant hereto defendant City of New York (hereinafter "CITY") was and is a duly incorporated Municipality established and existing under the laws and ordinances of the State of New York.
8. At all times relevant hereto, defendant Former Police Commissioner Dermot Shea (hereinafter "SHEA") is a natural person, citizen of New York State and resident of New York County.
9. At all times relevant, defendant former Assistant Chief of Police Joseph Kenny (hereinafter "KENNY") a natural person and resident of Suffolk County, State of New York.
10. At all relevant times hereinafter, the defendant CITY, its agents, servants and employees operated, maintained and controlled the NYPD, and all the police officers thereof, in particular defendants, Shea and Kenny

FACTS

11. That on or about December 12, 2017, members of the NYPD, executed a "no knock warrant" on Plaintiff's then residence located at 22-29-Dix Avenue, Apt. #1, Far Rockaway, N.Y. 11691
12. That as a result of said warrant execution, on March 4, 2019, Plaintiffs filed suit in Queens Supreme Court, against the City of New York et al. under Index # 703770/2019, alleging that the City of New York, The New York City Police Department and its officers executed the warrant at the wrong address.

13. That on April 5, 2021, the New York Daily News ran a cover story entitled “NO KNOCK NIGHTMARE”, regarding allegations that the NYPD was improperly conducting “no knock warrants”.

14. That on April 10, 2021, the New York Daily News ran a cover story profiling Plaintiffs entitled “QUEENS COPS BUST DOWN WRONG DOOR IN NO-KNOCK RAID AND TRAUMATIZE FAMILY: LAWSUIT.

15. That following the April 10, 2021, Daily News article, on April 14, 2021, Defendant SHEA appeared on New York 1 News and made statements, imputing the commission of serious criminal behavior upon Plaintiffs by stating the following:

“We formed a unit a couple of years ago to fight frivolous lawsuits and these stories fall squarely into that category. Not only were the warrants appropriate, they were targeted at the appropriate locations on violent gang members; not a penny in my eye, should be paid out on any of these four warrants that were highlighted in the story. They were not the wrong door, they were the right door and the people also have a responsibility, whether its a son, daughter a boyfriend of a daughter or any of those circumstances that are coming into your house and the community complaining to the NYPD about drugs, guns and gang members at locations, certainly we have a moral obligation to address these complaints and that’s exactly what we did, and there was no wrong door on any of these warrants that were highlighted in the newspaper”.

16. That on April 15, 2021, during a Press Conference at One Police Plaza, Defendant Kenny made statements New York City Daily News newspaper, among others, imputing the commission of serious criminal behavior upon the Plaintiffs, by stating the following. *“There was no mistake made, we were absolutely 100% in the right spot.”*He further confirmed to the Daily News that *“police hit two apartments that day — one in search of a dealer selling crack in another Dix Ave. building and another in search of a Chase Gang associate selling drugs out of Okoli’s.”*

CONDITION PRECEDENT

17. That on or about May 6, 2021 Plaintiffs Notice of Claim was duly filed with the Comptroller’s office of the City of New York and with the NYPD.

18. That said Notice of Claim was filed within 90 days after the causes of action had accrued and as such more than thirty (30) days have elapsed since the filing of said Notice and this matter has not been settled or otherwise disposed of.

19. That the Plaintiffs variously and respectfully on September 9, 2021, September 10, 2021 and September 17, 2021 submitted to an inquiry concerning the justness of their claims as provided by section 50-H of the General Municipal Law by attending a 50-H hearing via Zoom organized and held by outside counsel for the CITY, Armienti, DeBellis & Rhoden, LLP Attorneys at Law 39 Broadway, Suite 520 New York, NY 10006-3034.

20. That his action is being commenced within one (1) year and ninety (90) days of the occurrence complained of herein.

**AS AND FOR A FIRST CAUSE OF ACTION FOR
DEFAMATION PER-SE AS AGAINST ALL DEFENDANTS**

21. Plaintiffs, repeat, reiterate and realleges each and every allegation contained in the within complaint in paragraphs designated "1" through "20" inclusive, with the same force and effect as though more fully set forth herein at length.

22. The Defamatory Statements are about and concerning Plaintiffs.

20. The Defamatory Statements were published to a broad audience.

21. The Defamatory Statements concerning Plaintiffs are false.

22. The Defamatory Statements falsely charge Plaintiffs with serious crimes and injured Plaintiffs' in their community business and profession.

22. The Defamatory Statements are defamatory *per se* and damages are therefore presumed. In any event, however, Plaintiffs' reputation and good standing in their community has been harmed and will continue to be harmed by the Defamatory Statements.

23. To recover punitive and presumed damages for defamation *per se* where published statements as described above by defendants SHEA and KENNY imputed that Plaintiffs were engaging in the commission of serious crimes, to wit: membership in a criminal gang or organization and were dealing drugs out of their apartment.

24. To recover actual damages for defamation by slander by reason of false statements made by agents of the City to third parties without privilege or authorization, known to be false or made with reckless disregard for their truth or falsity and with actual malicious intent to cover up and obscure the negligence, carelessness, recklessness and structural racial biases of agents of the City in executing a no-knock search warrant at Claimants' home for which probable cause had not been shown to not be a product of structural racist policing underpinning the no-knock warrant policy, custom and practice .

25. That the individual defendants are liable in both their official and individual capacities for presumed and actual damages sustained by the plaintiffs as a result of their wrongful conduct

26. That the aforementioned Defendants in the course of their wrongful conduct described in the foregoing paragraphs, were acting in the course of and in furtherance of their employment for defendant CITY and as such, as their employer, said Municipal respondents are liable for their wrongful and negligent conduct.

27. As a direct and proximate result of the intentional and outrageous actions of all named Defendants, Plaintiffs suffered and will continue to suffer physically, emotionally, and otherwise.

28. The limited liability provisions of CPLR 1601 do not apply pursuant to one or more of the exceptions of CPLR 1602.

29. As a result of the foregoing, Plaintiffs sustained physical, emotional, and Psychological injuries, along with pain and suffering in an amount of damages which exceeds the jurisdictional limits of all lower courts

**AS AND FOR A SECOND CAUSE OF ACTION FOR MONELL
VIOLATIONS UNDER 42 U.S.C. SECT. 1983 14TH AMENDMENT
VIOLATIONS
AS AGAINST ALL DEFENDANTS.**

30. That the Plaintiff, hereby incorporates by reference each and every preceding paragraphs 1 through 29, of this Complaint as though fully plead and re-alleged in their entirety below.

31. That the Fourth and Fourteenth Amendment of the Constitution of the United States protects the right to be free from unreasonable searches and seizures and provides the right of equal protection from discrimination based on race and other immutable characteristics.
32. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by Plaintiffs.
33. That the City of New York under New York Laws sections 690.50 (search warrants) and 120.80 (arrest warrants) has rules, policies, practices and customs that permits the New York Police Department to either make an announcement before entering forcefully (knock and announce rule) and or enter forcefully without knocking (no-knock rule)
34. That a New York Times investigation found that at least 94 people, including 13 officers, were killed during forcible police entries between 2010 and 2016 nationwide.
35. That Officers executing warrants have killed children and elderly people.
36. That many people have been injured as a result of police firing flashbang devices into a home before entering, once severely burning a baby in his playpen.
37. That oftentimes police have conducted these raids based on flawed¹ or old intelligence, breaking into the wrong home and killing people who were not their intended target for arrest, as in Breona Taylor's case.
38. That researchers have estimated that at least 20,000 no-knock warrants are authorized by courts every year, the vast majority of them against Black and brown people and aimed at finding illegal drugs. But as many as 60,000 warrants a year end up playing out like no-knock warrants, even if not authorized as such. That is because the line between court-approved unannounced raids and raids in which police are legally required to knock and announce themselves is often

¹ <https://www.youtube.com/watch?v=KUwI3U5klZQ>- City Council Budget Hearing opening remarks - PC Dermot Shea - Here PC Shea admits that the NYPD has dysfunction problems of over-policing and implicit bias and yet supports the use of no-knock warrants in NYC as a model for the Country

blurry in practice, and most raids turn into what are known as “quick-knocks,” during which police announce themselves and break in almost simultaneously.

39. That the ACLU has called no-knock warrants “a particular devastating chapter in the racist war on drugs²”

40. That a New York State bill, co-sponsored by Sens. Brian Benjamin and James Sanders Jr. and Assembly Member Daniel J. O'Donnell, seeks to limit the use of unannounced, no-knock raids to the most severe circumstances, like the pursuit of a murder suspect or incidents involving active shooters, hostage-taking, terrorism, or human trafficking.

41. That it would ban the issuance of no-knock warrants aimed exclusively at searching for drugs, currently the most common use of these heavily militarized raids.

42. That the NYPD has abused the use of no-knock warrants to an egregious degree, including particularly in Southeast Queens district which is predominantly black and brown³.

43. That in 2017, Police officers burst into the Far Rockaway home of Plaintiffs' Nigerian-American husband and wife Isaac Okoli and Millycent Atuegwu⁴ in the early morning, pointing guns at them and their children, tearing off Okoli's sleep apnea device and rolling him to the ground, and startling Atuegwu out of bed⁵.

44. That a racist white police officer on that raid claimed he found cocaine and arrested Plaintiff Isaac Okoli for possession⁶.

45. Upon information and belief, Defendant City of New York, at all relevant times, was aware that the Defendants Officials as a result of the policy, practice and custom of using no-knock warrants are and were aware and or could and should have been aware of the facts and

² <https://www.nyclu.org/en/legislation/legislative-memo-police-use-no-knock-warrants>

³ <https://www.gothamgazette.com/opinion/10509-end-deadly-no-knock-warrants-nypd-police>

⁴ <https://www.nydailynews.com/new-york/nyc-crime/ny-wrong-door-raid-nypd-20210410-i4hrrg6eyzh7th2i5jwzuf2adu-story.html>

⁵ id

⁶ id

legal controversy surrounding the disparate, unconstitutional and racist impact no-knock warrant raids were having in Southeast Queens upon black and brown residents thereof.

46. Upon information and belief, Defendant City of New York, at all relevant times, was aware that the Defendants Officials as a result of the policy, practice and custom of using no-knock warrants are and were aware and or could and should have been aware of the facts surrounding the police raid on Plaintiffs home⁷ and including that the Plaintiffs are not members of any gangs and have never sold drugs and thus it was improper and libelous to impute the same to them.

47. Upon information and belief, Defendant City of New York, at all relevant times, was aware that the Defendants Officials as a result of the policy, practice and custom of using no-knock warrants are and were aware and or could and should have been aware of the facts and legal controversy surrounding the disparate, unconstitutional and racist impact no-knock warrant raids were having in Southeast Queens upon black and brown residents thereof and including that there was no evidence that Plaintiffs are members of any gangs and have ever sold drugs out of their apartment.

48. Upon information and belief, Defendant City of New York, at all relevant times, was aware that the Defendants Officials as a result of the policy, practice and custom of using no-knock warrants are and were aware and or could and should have been aware of the facts and legal controversy surrounding the disparate, unconstitutional and racist impact no-knock warrant raids were having in Southeast Queens upon black and brown residents thereof and including that despite such a raid the police found no evidence that Plaintiffs are members of any gangs and have ever sold drugs out of their apartment, but, nonetheless publicly supported, advocated and promoted the racist, unconstitutional policy, custom and practice of no-knock warrants as an

⁷<https://www.ny1.com/nyc/all-boroughs/news/2021/04/16/nypd-brass-defends-no-knock-warrants-as-the-tactic-faces-increased-scrutiny>

effective⁸ tool of law enforcement regardless of its racist and disparate impact on black and brown bodies in defense of the raid on the Plaintiffs apartment.

49. Upon information and belief, Defendant City of New York, at all relevant times, was aware that the Defendants are unfit Officials who publicly supported, advocated, promoted the policy, custom and practice of now nearly nationwide banned⁹ no-knock warrants as an effective tool of law enforcement despite its racist and disparate impact on black and brown bodies, have a propensity for unconstitutional conduct and or have been inadequately trained with regards to and as to anti-racist policing .

50. Upon information and belief, Defendant City of New York, at all relevant times, was aware that the Defendants pursuant to and in defense of New York City's no-knock warrant policy, custom and practice did publicly and improperly impute criminal conduct upon the Plaintiffs without there being any evidence to support such conduct .

51. That the above described conduct, to wit the wrongful imputation of criminal conduct that took place at the subject times and place by the defendant CITY through and/or by the actions of its agents, servants and employees, namely Defendants Former NYC POLICE COMMISSIONER DERMOT SHEA and former ASSISTANT CHIEF OF POLICE JOSEPH KENNY constitutes, variously, unreasonable disparate treatment and deliberate indifference predicated on structural racial animus and or bias in violation of the 14th Amendment of the Federal and State Constitutions which have caused Plaintiffs to suffer per se harmful public hatred, contempt, ridicule and disgrace.

52. That the CITY through, among other things, the actions and or inactions of the Mayor William Deblasio failed to take the steps necessary to properly hire, train, supervise or otherwise instruct its Officials and officers, including but not limited to Former Police

⁸ <https://abc7ny.com/nypd-search-warrants-no-knock-warrant-drugs/10517275/>

⁹ <https://apnews.com/article/joe-biden-amir-locke-police-shootings-jen-psaki-a33088e70b82f974c0408a3fdb89438>
b

Commissioner Dermot Shea and Former Assistant Chief of Police Joseph Kenny in the proper anti-racist manner of policing and publicly reporting on minorities and in particular black residents of New York City; in the proper and strict adherence to their moral and professional obligations to properly investigate the innocence of black residents and victims of the racist and unconstitutional no-knock warrant policy, custom and practice of New York City before publicly imputing criminal conduct upon them; to properly follow and strictly adhere to their duties and obligations not to assert, impute and or infer false criminal conduct upon innocent persons and then abuse the power and role of their offices to shield themselves from liability as against those individuals who they have knowingly wronged in order to support, maintain and continue an unconstitutional racist policy of no-knock warrant police raids that impact minorities and specifically black residents disproportionately and in particular the Okolis .

53. Upon information and belief, Defendant City was aware that Defendants at issue here supported, promoted and advocated for the continued application and use of no-knock warrants at least up until the subject incidents herein and thus clearly advocated for an unconstitutional law enforcement practices now subject to being banned Nationally and in New York, required additional training, retraining, supervision, discipline, monitoring or other reasonable managerial action in response to the obvious risks that the patterns of such support, advocacy and promotion posed to future rights violations.

54. Nevertheless, Defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, Defendant City of New York failed to adequately investigate whether prior complaints filed against the Individual Defendants and/or misconduct concerns that municipal and other data collection made known or knowable about Defendants and/or the law enforcement practices and operations raised by the complained-of actions here.

55. That in having an aggressive and unconstitutional policy in place that over militarized black and brown communities¹⁰, defendant City and these Defendant Officials furthered a systemic problem with racial misconduct as against persons of color by causing them to suffer militarized police forces desensitized to the improper means and use of police power as against persons of color,¹¹ was and is grossly negligent to the safety of such persons as Plaintiffs, and thus the CITY improperly hired and retained such Police Officials who despite the foregoing racist and unconstitutional nature of such no-knock warrant policy falsely attribute and imputed criminal conduct upon the Plaintiffs without any evidence to support same on account of the structural racism implicit behind the policy mindset.

56. That upon Information and belief, the Defendant CITY knew or should have known that the above heavily militarized and racist policy and practice of having Police officers conduct no-knock drug raids on homes in predominantly black or brown areas of New York in a manner inconsistent with constitutional mandates would result in 4th and 14th amendment violations against such persons from notice of claims, lawsuits, complaints and their own observations but despite same continued the promotion and support of such racist policies, customs and practice, was and is a clear demonstration that these officials were unfit to be Police Officials and that it was highly likely that they would commit the alleged acts alleged in the present case, to wit publicly impute criminal conduct upon an innocent black family on behalf of a negligent and racist policing policy and as such, they exhibited deliberate indifference to the rights of others by failing to act on such information¹² indicating that unconstitutional acts were occurring.

¹⁰ <https://theintercept.com/2020/12/17/no-knock-raid-new-york-breonna-taylor/>

¹¹ <https://www.nytimes.com/2011/12/04/sunday-review/have-american-police-become-militarized.html>;

https://en.wikipedia.org/wiki/Militarization_of_police;

<https://www.nybooks.com/daily/2020/06/03/how-police-became-paramilitaries/>;

<https://www.pnas.org/content/115/37/9181>;

<https://www.wnyc.org/story/militarization-american-police-departments/>;

<https://www.newyorkcr.com/news/news-desk/do-not-resist-and-the-crisis-of-police-militarization>;

<https://www.britannica.com/topic/Militarization-of-the-Police-in-the-U-S-The-2008914>;

<https://www.aclu.org/report/war-comes-home-excessive-militarization-american-police>

¹² See Supra footnotes 1

57. That the conduct of the defendants CITY, NYPD and its Police Officers violated Plaintiff's rights under 42 USC Section 1983, the Fourth and Fourteenth Amendment, the Constitution of the United States and the laws of New York State by failing to properly train, supervise and retrain Police Officials; in failing to adequately discipline the defendant subordinate agents and employees; failing to adequately investigate prior complaints against the defendant subordinate agents and employees, and by acting in a manner which amounted to negligent hiring, training, monitoring and retention of incompetent structurally racist employees in violation of state and federal law.

58. That the aforementioned individual subject Police Official actions were committed under color of state law and that these acts deprived the Plaintiff of equal rights, privileges, or immunities secured by the Constitution or laws of the United States.

59. That the above described conduct that took place at the subject times and place by the defendant CITY through and/or by the actions of its agents, servants and employees, namely Defendants NYC POLICE COMMISSIONER DERMOT SHEA and ASSISTANT CHIEF OF POLICE JOSEPH KENNY constitutes, variously, unreasonable disparate treatment and deliberate indifference predicated on structural racial animus and or bias in violation of the 14th Amendment of the Federal and State Constitutions which have caused Plaintiffs to suffer harmful public hatred, contempt, ridicule and disgrace.

60. By its conduct, defendant CITY through and/or by the actions of its agents, servants and employees, namely the aforesaid agents, under color of law, pursuant to U.S.C §1983, deprived Plaintiffs of their State and Federal constitutional right to be free from unreasonable disparate treatment and deliberate indifference predicated on policing that was permeated with structural racial animus and or bias in violation of the 14th Amendment of the Federal and State Constitutions.

61. That the aforementioned Defendants in the course of their wrongful conduct described in the foregoing paragraphs, were acting in the course of and in furtherance of their employment for defendant CITY and as such, as their employer, said Municipal respondents are liable for their wrongful and negligent conduct.

62. Additionally, and upon information and belief, Defendant City failed in its duty to train, retain, manage, control and supervise their agents, servants, employees and personnel in the proper safe and secure manner in which to gather sensitive information regarding attribution of criminal conduct upon and to historically racially disenfranchised and discriminated persons and disseminate same to the press, where given the racist impact of the no-knock warrant policy, practice and custom there exists a history of unreasonable disparate treatment and deliberate indifference predicated on structural racial animus and or bias in violation of the 14th Amendment of the Federal and State Constitutions by the NYPD and its officials regarding such historically racially disenfranchised and discriminated persons .

63. As a direct and proximate result of the negligent, unconstitutional and outrageous actions of all named Defendants, Plaintiffs suffered and will continue to suffer physically, emotionally, and otherwise.

64. The limited liability provisions of CPLR 1601 do not apply pursuant to one or more of the exceptions of CPLR 1602.

65. As a result of the foregoing, Plaintiffs sustained physical, emotional, and Psychological injuries, along with pain and suffering in an amount of damages which exceeds the jurisdictional limits of all lower courts

**INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
AS AGAINST ALL DEFENDANTS**

66. Plaintiffs, repeat, reiterate and realleges each and every allegation contained in the within complaint in paragraphs designated “1” through “65” inclusive, with the same force and effect as though more fully set forth herein at length.

67. In committing the acts described above, all of the named Defendants acted intentionally and/or recklessly in deliberate disregard of the high degree of probability of the emotional distress that Plaintiffs would suffer.

68. The conduct all of the named Defendants was so outrageous and extreme in degree as to go beyond all possible bounds of decency and to be regarded as atrocious and utterly intolerable in a civilized community.

69. In addition, Defendant CITY is directly liable based on its own reckless, extreme, and outrageous conduct by failing to supervise Defendants SHEA and KENNY, knowing that they would likely use their position to defame the Plaintiffs. Defendants SHEA and KENNY’s conduct was so shocking and outrageous that it exceeds the reasonable bounds of decency as measured by what the average member of the community would tolerate and demonstrates an utter disregard by them of the consequences that would follow.

70. The Defendant CITY knew that the foregoing reckless, extreme, and outrageous conduct by Defendants SHEA and KENNY would inflict severe emotional and psychological distress, including personal physical injury, on others, and Plaintiffs did in fact suffer severe emotional and psychological distress and personal physical injury as a result, including severe mental anguish, humiliation and emotional and physical distress.

71. The conduct of all named defendants was intentional and outrageous as it pertains to the defamatory statements made to the public against the Plaintiffs, as detailed above.

72. As a direct and proximate result of the intentional, and outrageous actions of all named Defendants, Plaintiffs suffered and will continue to suffer physically, emotionally, and otherwise.

73. The limited liability provisions of CPLR 1601 do not apply pursuant to one or more of the exceptions of CPLR 1602.

74. As a result of the foregoing, Plaintiffs sustained physical, emotional, and Psychological injuries, along with pain and suffering in an amount of damages which exceeds the jurisdictional limits of all lower courts

FOURTH COUNT

NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS AS AGAINST ALL DEFENDANTS

75. Plaintiffs, repeat, reiterate and realleges each and every allegation contained in the within complaint in paragraphs designated "1" through "74" inclusive, with the same force and effect as though more fully set forth herein at length.

76. In committing the acts described above, the named Defendants acted negligently and/or recklessly in deliberate disregard of the high degree of probability of the emotional distress that Plaintiffs would suffer.

77. The conduct of the named Defendants was so outrageous and extreme in degree as to go beyond all possible bounds of decency and to be regarded as atrocious and utterly intolerable in a civilized community.

78. At all relevant times Defendants SHEA and KENNY were employees or agents of Defendant CITY, acting within the scope of their employment or agency. As such, Defendant CITY is vicariously liable for the torts committed by Defendants SHEA and KENNY under the doctrine of *respondeat superior*.

79. Defendant CITY knew or should have known that the foregoing negligent, reckless, extreme, and outrageous conduct by Defendants SHEA and KENNY would inflict severe emotional and psychological distress, including personal physical injury, on others, and Plaintiffs

did in fact suffer severe emotional and psychological distress and personal physical injury as a result, including severe mental anguish, humiliation and emotional and physical distress.

80. The conduct of Defendant CITY was negligent and outrageous as it pertains to the oversight, knowledge and/or acquiescence of the actions of Defendants SHEA and KENNY while within the scope of their employment with and the services they provided to Defendant CITY.

81. As a direct and proximate result of the negligent, and outrageous actions of all named Defendants, Plaintiffs suffered and will continue to suffer physically, emotionally, and otherwise.

82. The limited liability provisions of CPLR 1601 do not apply pursuant to one or more of the exceptions of CPLR 1602.

83. As a result of the foregoing, Plaintiffs sustained physical, emotional, and Psychological injuries, along with pain and suffering in an amount of damages which exceeds the jurisdictional limits of all lower courts

WHEREFORE, Plaintiffs demand judgment against all named Defendants for damages in an amount sufficient to compensate them for compensatory damages, for both physical and emotional pain and suffering, for punitive damage, for costs of suit, attorney fees and for such other relief as the Court finds equitable and just.

Dated: New York, New York
April 11, 2022



REHAN NAZRALI, Esq.
299 Broadway., 17th Fl
New York, NY 10007
Tel. 646-331-9378

ATTORNEY VERIFICATION

REHAN NAZRALI, ESQ., an attorney admitted to practice in the courts of New York State, states as follows: I am attorney of record for the Plaintiffs, to wit, ISAAC OKOLI, MILLYCENT ATUEGWU, VICTORIA OKOLI, GABRIEL OKOLI, SAMUEL OKOLI AND P.O. (AN INFANT WHOSE PARENTS AND NATURAL GUARDIANS ARE ISAAC OKOLI AND MILLYCENT ATUEGWU) in the within Summons and Complaint, I have read the foregoing **Summons and Complaint** and know the contents thereof; the same is true to my own knowledge, except as to those matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true. The reason this verification is made by me and not by the Plaintiffs do not reside in the county where I maintain my offices. The grounds of my belief as to all matters not stated upon my own knowledge are information contained in the file and communications with my client(s). I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, NY
April 11, 2022



Rehan Nazrali, Esq.
299 Broadway, 17th Floor
New York, NY 10007
(646)331-9378

Index No.

Year 20

SUPREME COURT OF THE STATE OF NEW YORK
 COUNTY OF KINGS

ISAAC OKOLI et al

Plaintiff,

v.

THE CITY OF NEW YORK et al.

Defendants.

SUMMONS & VERIFIED COMPLAINT

REHAN NAZRALI
 PLAINTIFFS

Attorney(s) for

Office Address & Tel No.:
 New York, N.Y. 10007
 TEL: (212) 962-1333

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR.1200.41-a.

Dated:

Signature

Print Signer's Name

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

NOTICE OF
ENTRY

that the within is a (certified) true copy of a
 entered in the office of the clerk of the within-named Court on

20

NOTICE OF
SETTLEMENT

that an Order of which the within is a true copy will be presented for settlement to the
 Hon. , one of the judges of the within-named Court,
 at , at M.
 on 20

Dated:

Rehan Nazrali,
 Attorney(s) for ATTORNEYS AT LAW
 Plaintiffs

Office Address & Tel No.: